



CHAPTER xciv.

An Act to confer additional powers upon the North Eastern Railway Company for the construction of new railways and other works and the acquisition of lands and for other purposes. A.D. 1911.
[18th August 1911.]

WHEREAS it is expedient that the North Eastern Railway Company (in this Act called "the Company") should be empowered to make and execute the new railways widenings of railways and other works by this Act authorised and hereinafter described and to acquire the lands in this Act described and that the other powers in this Act mentioned should be conferred on the Company:

And whereas plans and sections showing the lines and levels of the works by this Act authorised and plans of the lands by this Act authorised to be acquired and also books of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands were duly deposited with the clerks of the peace for the several counties and ridings within which the said works will be constructed and the said lands are situate which plans and sections and books of reference are in this Act respectively referred to as the deposited plans sections and books of reference:

And whereas it is expedient that the time limited by the Brackenhill Light Railway Orders 1901 to 1907 (in this Act called "the Orders of 1901 to 1907") for the completion of the railway authorised by those Orders should be extended as provided by this Act:

And whereas it is expedient that the Company should be empowered to subscribe to or invest money in the capital of the Derwent Valley Light Railway Company (in this Act called

[Price 3s. 6d.] A 1

A.D. 1911. “the Derwent Valley Company”) and that such powers in reference to such subscriptions or investments as are herein-after contained should be conferred on the Company:

And whereas it is expedient that the Company should be empowered to raise further capital and to apply their funds for the purposes aforesaid and for the general purposes of their undertaking:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title.

1. This Act may be cited for all purposes as the North Eastern Railway Act 1911.

Incorporation of general Acts.

2. The following Acts and parts of Acts are (except where expressly varied by this Act) incorporated with and form part of this Act (that is to say):—

The Lands Clauses Acts;

The Railways Clauses Consolidation Act 1845;

Part I. (relating to construction of a railway) and Part II. (relating to extension of time) of the Railways Clauses Act 1863;

The Companies Clauses Consolidation Act 1845; and

Part II. (relating to additional capital) of the Companies Clauses Act 1863 as amended by subsequent Acts.

Interpretation.

3. In this Act unless there be something in the subject or context repugnant to such construction the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated herewith have the same respective meanings and the expression “the railways” means the new railways and widenings of railways by this Act authorised.

Protection of gas and water mains of local authorities.

4. The provisions of sections 18 to 23 of the Railways Clauses Consolidation Act 1845 shall for the purposes of this Act extend and apply to the water and gas mains pipes and apparatus of any local authority and shall be construed as if “local authority” were mentioned in those sections in addition

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to "company or society" Provided that any penalties recovered under section 23 shall be appropriated to that fund of the local authority to which their revenues in respect of water or gas (as the case may be) are appropriated. A.D. 1911.

5. Subject to the provisions of this Act the Company may in the lines shown on the deposited plans and according to the levels shown on the deposited sections make and maintain the railways herein-after described with all proper stations sidings approaches roads works and conveniences connected therewith and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference relating thereto as may be required for those purposes and for any other purposes connected with their undertaking. Power to Company to make railways.

The railways herein-before referred to and authorised by this Act are—

In the county of Northumberland—

A Railway No. 1 (5 furlongs 6 chains in length) in the urban district of Whitley and Monkseaton commencing by a junction with the Company's Manors North and Tynemouth Branch and terminating by a junction with the same branch: (Railways at Monkseaton.)

A Railway No. 2 (3 furlongs 9 chains in length) in the urban district of Whitley and Monkseaton commencing by a junction with Railway No. 1 and terminating by a junction with the Company's Avenue Branch:

A Railway No. 3 (1 mile 1 furlong 1 chain in length) in the urban district of Bedlingtonshire commencing by a junction with the Company's Cambois Branch and terminating at the southern end of a jetty of open pile work (if and when authorised to be erected) in the River Blyth and in connexion therewith the Company may alter and divert so much of the road leading from North Blyth to East Sleekburn as lies between the junction of that road with the road leading from Cambois Colliery to North Blyth and a point on the road to be altered and diverted 528 yards or thereabouts west of such last-mentioned junction and may stop up the said road between the points mentioned: (Railway to North Blyth Staiths.)

A Railway No. 4 (1 mile 7 furlongs 5 chains in length) in the parish of Hartley commencing by a junction with (Monkseaton to Seaton Sluice.)

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the Company's Avenue Branch and terminating at Seaton Sluice:

(Widening
Newbiggin
Branch.)

A Widening (No. 1) of the Company's Newbiggin Branch (1 mile 2 furlongs 5 chains in length) in the parishes of Woodhorn and Woodhorn Demesne commencing near the Woodhorn Colliery Junction Signal Cabin and terminating near Newbiggin Station.

In the North Riding of the county of York—

(Widening
York and
Newcastle
Railway.)

A Widening (No. 2) of the Company's York and Newcastle Railway (1 mile 4 furlongs 1·60 chains in length) in the parishes of Dalton-upon-Tees and East Cowton commencing near Eryholme Junction and terminating near Cowton Station and in connexion therewith the Company may alter and divert so much of the footpaths leading from Dalton-upon-Tees to Cowton Moor House and from Catterick Bridge Road to Cowton Fields as adjoins the said railway:

(Widening
Darlington
and Saltburn
Railway.)

A Widening (No. 3) of the Company's Darlington and Saltburn Railway (2 miles 7 furlongs 3·25 chains in length) in the parishes of Wilton and Kirkleatham and in the urban district of Redcar commencing near Lazenby Level Crossing and terminating near Redcar West Signal Box.

In the West Riding of the county of York—

(Widening
and altera-
tion of Leeds
and Selby
Railway.)

A Widening (No. 4) and alteration of the Company's Leeds and Selby Railway (6 furlongs 2·6 chains in length) in the city and county borough of Leeds commencing near the bridge carrying the said railway over Briggate and terminating near Marsh Lane East Signal Box and in connexion therewith the Company may in the said county borough in the manner shown on the deposited plans and sections—

(1) Narrow the street known as "The Calls" on the north side thereof between points respectively 8 yards or thereabouts and 23 yards or thereabouts west of its junction with Crown Street and may stop up the portion of such street included within the limits of deviation of the said Widening (No. 4):

(2) Make a diversion of Cross York Street commencing at a point in that street 35 yards or thereabouts

from its junction with Kirkgate and terminating in Kirkgate at a point 28 yards or thereabouts north-west of the said junction and may stop up the portion of Cross York Street between the commencement of the said diversion and Kirkgate: A.D. 1911.

- (3) Make a new road (No. 1) commencing by a junction with Wharf Street at a point 23 yards or thereabouts south-west of its junction with Kirkgate and terminating by a junction with Kirkgate at a point 30 yards or thereabouts south-east of the junction of Wharf Street and Kirkgate:
- (4) Make a diversion of Lady Beck on the western side of Duke Street between points respectively 40 yards or thereabouts south and 30 yards or thereabouts north of the Company's Leeds and Selby Railway:
- (5) Stop up Galway Street:
- (6) Make a new road (No. 2) commencing by a junction with Marsh Lane at a point 40 yards or thereabouts south-west of the bridge carrying the Company's Leeds and Selby Railway over Marsh Lane and terminating at a point on the north side of Crispin Street opposite the road leading to the western end of that street from Saxton Lane and may widen Crispin Street on the north side thereof between such point of termination and Upper Cross Street and may stop up Railway Street and Feetham's Fold and so much of Spring Street as lies between Railway Street and Grantham Street and so much of Pheasant Street as extends for a distance of 16 yards or thereabouts south of Railway Street and so much of Upper Cross Street as extends for a distance of 12 yards or thereabouts south of Railway Street:
- (7) Make a new road (No. 3) commencing by a junction with Richmond Road at or near the junctions therewith of Grantham Street and Clay Street and terminating by a junction with Eastfield Street at a point 28 yards or thereabouts south-east of the junction therewith of Richmond Road

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and may alter and extend the footbridge over the Company's Leeds and Selby Railway at the northern end of Richmond Road for a distance of 10 yards or thereabouts in a southerly direction and in connexion therewith may alter and divert the footpaths leading from Railway Street and Eastfield Street to the said footbridge and stop up the footpaths so proposed to be diverted and so much of Richmond Road as lies between the commencement of the said new road and Eastfield Street and so much of Eastfield Street as lies between Richmond Road and the termination of the said new road.

Rates to be
taken by
Company.

6. The railways shall for the purposes of tolls rates and charges and for all other purposes whatsoever be part of the undertaking of the Company and the Company may demand receive and take in respect thereof for the conveyance of merchandise thereon (including perishable merchandise by passenger train) the maximum rates and charges authorised by the Railway Rates and Charges No. 15 (North Eastern Railway &c.) Order Confirmation Act 1892 and for the conveyance thereon of passengers and parcels by passenger train the rates and charges authorised by the North Eastern Railway Company's Act 1854 the North Eastern and Stockton and Darlington Railways Amalgamation Act 1863 the North Eastern Railway Company's (Pelaw and other Branches) Act 1865 and the North Eastern Railway Company's (New Lines) Act 1874 and may also demand receive and take in respect of any jetty staiths spouts shipping places quays wharfs or works made in connexion with Railway No. 3 or for any services rendered thereat the same rates dues tolls and charges as are authorised to be taken by the North Eastern Railway Company's (Additional Powers) Act 1874 (except the rates and dues specified in Schedule B to the same Act) in respect of the Company's existing Tyne Dock at Jarrow and the jetties staiths spouts shipping places quays wharfs and works connected therewith :

Provided that from and after the opening for use of any shipping place made in connexion with Railway No. 3 authorised by this Act the Company shall be entitled to charge for the conveyance and shipment of coal conveyed to and shipped at such shipping place and for the conveyance and shipment of coal conveyed to and shipped at any shipping place made or

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used in connexion with Railway No. 2 authorised by the North Eastern Railway Act 1893 one-eighth of a penny per ton more than under section 10 of the North Eastern Railway Act 1893 they are entitled to charge for the conveyance of coal to and shipment thereof at any shipping place made or used in connexion with the said Railway No. 2 but no higher or greater charge : A.D. 1911.

Provided also that in respect of the conveyance of a consignment of perishable merchandise not exceeding fifty-six pounds in weight by passenger train the Company shall not be entitled to charge a higher rate than the maximum rate which they are authorised to charge for the conveyance of parcels of the same weight.

7. The Company may divert the roads and public footpaths referred to in the next following table in the manner shown upon the deposited plans and sections and subject to the provisions of this Act may stop up and cause to be discontinued as a road or footpath so much of each existing road or footpath as will be rendered unnecessary by the new portion of road or footpath so shown on the said plans (that is to say) :— Power to divert roads and foot-paths.

Railway.	Parish or other Area.	Number of Road or Footpath on Deposited Plans.
Widening (No. 2) - -	East Cowton - -	2
Widening (No. 2) - -	East Cowton - -	10
Widening (No. 3) - -	Redcar - -	12

8. If the new railways are not completed within five years from the passing of this Act then on the expiration of that period the powers by this Act granted to the Company for making and completing the new railways or otherwise in relation thereto shall cease except as to so much thereof as is then completed. Period for completion of new railways.

9. If the Company fail within the period limited by this Act to complete the new railways the Company shall be liable to a penalty of fifty pounds a day for every day after the expiration of the period so limited until the railway in respect of which the penalty has been incurred is completed and opened for public traffic or until the sum received in respect of such Imposing penalty if new railways not opened within period limited.

A.D. 1911. penalty amounts to five per centum on the estimated cost of the railway in respect of which such penalty has been incurred.

The said penalty may be applied for by any landowner or other person claiming to be compensated or interested in accordance with the provisions of the next following section of this Act and in the same manner as the penalty provided in section 3 of the Railway and Canal Traffic Act 1854.

Every sum of money recovered by way of such penalty as aforesaid shall be paid under the warrant or order of such court or judge as is specified in that section to an account opened or to be opened in the name of the Paymaster-General for and on behalf of the Supreme Court in the bank and to the credit specified in such warrant or order and shall not be paid thereout except as herein-after provided.

But no penalty shall accrue in respect of any time during which it shall appear by a certificate to be obtained from the Board of Trade that the Company were prevented from completing or opening the railway in respect of which the penalty has been incurred by unforeseen accident or circumstances beyond their control. Provided that the want of sufficient funds shall not be held to be a circumstance beyond their control.

Application
of penalty.

10. Every sum of money so recovered by way of penalty as aforesaid shall be applicable and after due notice in the London Gazette shall be applied towards compensating any landowners or other persons whose property has been interfered with or otherwise rendered less valuable by the commencement construction or abandonment of the railway in respect of which the penalty has been incurred or any portion thereof or who have been subjected to injury or loss in consequence of the compulsory powers of taking property conferred upon the Company by this Act for the purposes of such railway and for which injury or loss no compensation or inadequate compensation has been paid and shall be distributed in satisfaction of such compensation as aforesaid in such manner and in such proportions as to the High Court may seem fit.

If no such compensation is payable or if a portion of the sum or sums of money so recovered by way of penalty as aforesaid has been found sufficient to satisfy all just claims in respect of such compensation then the said sum or sums of money recovered by way of penalty or such portion thereof as may not be required as aforesaid shall if a receiver has been

appointed or the Company is insolvent or the railway or railways in respect of which the penalty has been incurred or any part thereof has been abandoned be paid or transferred to such receiver or be applied in the discretion of the Court as part of the assets of the Company for the benefit of the creditors thereof and subject to such application shall be repaid or retransferred to the Company.

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11. The Company shall not under the powers of this Act enter upon use purchase or take compulsorily from the Duke of Northumberland or his successors in title the lands in the urban district of Whitley and Monkseaton numbered on the deposited plans 1a 10 14a 15 16 17 18 22 and 23 in the said urban district but the Company may (upon such terms as may have been or hereafter may be agreed) purchase in fee simple or take on lease for any term not exceeding one thousand years any of the said lands and the mines and minerals thereunder and any easements or rights over the said lands and the Duke of Northumberland and his successors in title or other the owner or owners of the said lands shall have full power to make such sales and grant such leases as aforesaid for such consideration (which may consist either wholly or in part of a principal sum or sums or an annual rent or a contingent sum or sums in the way of rent rentcharge royalty or otherwise) as he or they shall think proper.

For protection of Duke of Northumberland.

12. For the protection of the mayor aldermen and burgesses of the borough of Tynemouth (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed in writing between the Company and the corporation apply and have effect (that is to say):--

For protection of Tynemouth Corporation.

- (1) In this section the expression "water main" includes water mains and pipes hydrants valves plugs and water apparatus and appliances belonging to the corporation :
- (2) The existing water mains of the corporation laid in the roads known as Marine Avenue and Relton Terrace at Monkseaton where the same will be interfered with by the construction of Railways Nos. 1 and 2 by this Act authorised or either of them shall be relaid by the Company in the approaches to the bridges and in the bridges by which the said roads will be carried over the said railways respectively

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and the Company shall provide at suitable points in the said approaches and bridges all necessary air valves sludge pipes and connecting drains and shall maintain the said mains valves pipes and drains for a period of five years from the laying and construction of the same The work of relaying and constructing such mains and works and of maintaining the same during the period aforesaid shall after the expiration of three days' notice in writing given by the Company to the corporation of their intention to proceed with the same be carried out under the superintendence of the corporation (if the corporation think fit to attend) and at the cost of the Company and in accordance with plans sections and specifications to be previously agreed between the Company and the corporation or in case of difference settled by arbitration as herein-after provided Provided that if the Company so desire the work of relaying and constructing such mains and works and maintaining the same during the period aforesaid shall be carried out by the corporation at the cost of the Company:

- (3) The corporation may under the supervision and to the reasonable satisfaction of the Company's engineer and at their own cost lay in the said bridges and the approaches thereto any additional water mains which they may require in connexion with their water undertaking:
- (4) The Company shall afford the corporation their water engineer servants and workmen all reasonable facilities for examining cleansing repairing renewing relaying altering or enlarging the water mains from time to time laid in the said roads and bridges:
- (5) If any difference shall arise between the Company and the corporation as to the mode of carrying out any works under this section or otherwise giving effect to the provisions of this section the same shall be referred to and determined by an engineer to be agreed upon between the corporation and the Company or failing agreement to be nominated by the President of the Institution of Civil Engineers on the application of the corporation or the Company and every such reference shall be deemed to be a

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reference to arbitration within the meaning of the Arbitration Act 1889 or any subsequent modification thereof. A.D. 1911.

13. Notwithstanding anything shown on the deposited plans and sections or contained in the deposited books of reference or in this Act the Company shall not without the consent in writing of the Right Honourable Matthew White Viscount Ridley or the Blyth Harbour Commissioners respectively purchase or acquire any lands belonging to them respectively south of a point on Railway No. 3 6 furlongs 6 chains from the commencement of such railway. For protection of Lord Ridley and Blyth Harbour Commissioners.

14. For the protection of the urban district council of Bedlingtonshire (in this section referred to as "the council") the following provisions shall unless otherwise agreed between the Company and the council apply and have effect (that is to say) :— For protection of Bedlingtonshire Urban District Council.

Notwithstanding anything contained in this Act or shown upon the deposited plans the Company shall not divert the road numbered on those plans 10 in the urban district of Bedlingtonshire otherwise than in accordance with the yellow line shown on the plan signed in duplicate by the Right Honourable Baron Sanderson the Chairman of the Committee of the House of Lords to whom the Bill for this Act was referred and of which plan one copy has been deposited in the Parliament Office of the House of Lords and one copy in the Private Bill Office of the House of Commons and the Company may divert the said road in the manner shown by the yellow line on the said signed plan and subject to the provisions of this Act may stop up and cause to be discontinued as a road so much of the existing road as will be rendered unnecessary by the new portion of road so shown upon the said signed plan.

15. For the protection of the Tynemouth Rural District Council (in this section called "the council") the following provisions shall have effect unless otherwise agreed between the council and the Company (that is to say) :— For protection of Tynemouth Rural District Council.

(1) Notwithstanding anything contained in this Act or shown on the deposited plans the bridge carrying Railway No. 4 over Hartley Lane shall be constructed

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with a span of not less than thirty feet and a clear headway of not less than fifteen feet:

- (2) The Company shall erect V-shaped wicket gates on each side of the said railway where it will cross the footpath running through the property numbered on the deposited plans 7 in the parish of Hartley:
- (3) The Company shall carry under the said railway by means of one subway the two footpaths running through the property numbered on the deposited plans 60 in the parish of Hartley:
- (4) In case of any difference or dispute arising between the council and the Company touching or concerning the true intent of the provisions in this section contained or anything to be done or not to be done hereunder such difference shall be determined by an arbitrator to be appointed unless otherwise agreed by the Board of Trade on the application of either party.

For protection of Redcar Urban District Council.

16. For the protection of the Redcar Urban District Council (in this section called "the council") the following provisions shall have effect unless otherwise agreed between the council and the Company (that is to say):—

- (1) Notwithstanding anything contained in this Act or shown on the deposited plans the Company shall in connexion with the widening of their Darlington and Saltburn Railway in the urban district of Redcar construct the new road from Tod Point Road to Warrenby Road and the bridge carrying the same over the Company's railway of a width between the fences of not less than twenty-eight feet:
- (2) The Council shall provide free of cost so much of the land belonging to them which is numbered on the deposited plans 13 in the urban district of Redcar as may be necessary to enable the Company to construct the said new road and the said bridge of such increased width of twenty-eight feet:
- (3) The Company shall maintain the said new road and the said bridge and the council shall maintain—
 - (A) So much of Tod Point Road and Warrenby Road as will not be stopped up under the powers of this Act; and

(B) The diversion of Warrenby Road between the points marked C and D on the deposited plans of the said widening: A.D. 1911.

- (4) In case of any difference or dispute arising between the council and the Company touching or concerning the true intent of the provisions in this section contained or anything to be done or not to be done hereunder such difference shall be determined by an arbitrator to be appointed unless otherwise agreed by the Board of Trade on the application of either party.

17. For the protection of the Tees Conservancy Commissioners (herein-after called "the commissioners") the following provisions shall have effect unless otherwise agreed between the Company and the commissioners (that is to say):—

For protection of Tees Conservancy Commissioners.

- (1) The Company shall not purchase and take the piece of land and siding numbered upon the deposited plans 2 in the urban district of Redcar but the Company may purchase and take and the commissioners may and if required so to do shall sell and grant accordingly an easement or right of using the same for the purpose of constructing and maintaining the widening of the Company's Darlington and Saltburn Railway by this Act authorised:
- (2) In constructing the widening of the said railway where the same will interfere with the branch railway or siding of the commissioners to the South Gare Breakwater the works shall be made to the reasonable satisfaction of the commissioners and in accordance with plans and sections to be previously submitted to and reasonably approved by them and in case of any difference arising between the Company and the commissioners as to the mode of carrying out the said works or otherwise in relation thereto the same shall be determined by an arbitrator to be appointed failing agreement by the Board of Trade on the application of either party:
- (3) The Company shall at their own expense make such alterations of or additions to the signals and other works connected with the junction between the said railway and the said branch railway or siding of the commissioners (if any) as may be rendered necessary

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by the construction of the widening of their said railway :

- (4) In constructing the widening of the said railway the Company shall not obstruct or interfere with the traffic passing or intended to pass to or from the said railway from or to the railway or siding of the commissioners.

For protection of Aire and Calder Navigation.

18. For the protection of the undertakers of the Aire and Calder Navigation the following provisions shall have effect unless otherwise agreed between the Company and the said undertakers (that is to say):—

- (1) Notwithstanding anything shown on the deposited plans the diversion of Lady Beck authorised by this Act in connexion with Widening No. 4 shall be carried out in the manner shown upon the plan signed in duplicate by Sir George Doughty the Chairman of the Committee of the House of Commons to whom the Bill for this Act was referred one copy of which plan has been deposited in the Office of the Clerk of the Parliaments and the other copy whereof has been deposited in the Private Bill Office of the House of Commons :
- (2) The said diversion shall be constructed and maintained by the Company so that no leakage or loss of water from the said Beck shall be caused or permitted :
- (3) The said diversion shall at all times be maintained in good repair by and at the expense of the Company :
- (4) All works in connexion with the construction of the said diversion shall be carried out under the superintendence (if such shall be given) and to the reasonable satisfaction of the engineer of the said undertakers :
- (5) If any difference shall arise between the Company and the said undertakers under this section such difference shall be determined by the arbitration of an engineer to be appointed by the Board of Trade on the application of either party.

Confirming agreement with corporation of Leeds.

19. The agreement dated the first day of June one thousand nine hundred and eleven and made between the lord mayor aldermen and citizens of the city of Leeds of the one part

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and the Company of the other part as set forth in the Second Schedule to this Act is hereby confirmed and made binding upon the parties thereto. A.D. 1911.

20. The following provisions for the protection of the patrons of Saint Peter's Church Leeds shall apply and have effect in lieu of sections 6 to 13 inclusive of the North Eastern Railway Act 1891 which are hereby repealed (that is to say):—

For protec-
tion of
patrons of
Church of
Saint Peter
Leeds.

- (1) The rails of the Widening (No. 4) and alteration of the Company's Leeds and Selby Railway by this Act authorised (herein-after referred to as "the widening") where the same passes through the Saint Peter's Graveyard in the city and county borough of Leeds shall be so laid and maintained as to prevent as far as practicable the noise of trains passing over and along the same including if found proper or efficient the laying of the rails upon felt or leather or other suitable substance for the prevention of noise and the engine drivers and servants of the Company shall conduct the trains along the same so far as practicable by signals instead of whistling except in cases of necessity or where the Board of Trade may otherwise direct and any question which may arise as to whether the widening is laid and maintained as hereby prescribed shall be referred to and decided by an arbitrator to be appointed by the President of the Institution of Civil Engineers on the application of the vicar of Leeds or the Company:
- (2) In making the widening through the said graveyard the Company shall not deviate more than three feet southwards from the line of widening shown on the deposited plans:
- (3) The Company shall not purchase take or acquire the freehold of or any other estate or interest in any part of the said graveyard other than the easement or right herein-after mentioned but they shall by virtue of and subject to the provisions of this Act and for the considerations herein-after mentioned be entitled to the perpetual easement and right of making maintaining and freely using without any restraint in the lines shown on the deposited plans a double line of railway forming a widening of their existing line of railway

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upon and by means of an earth embankment with a slope on the southern side thereof having an inclination of not less than one and a half horizontal to one vertical and retaining walls at the east and west sides of the said graveyard and at the toe of the slope on the southern side of the said embankment and the Company shall not enter upon use or interfere with more of the said graveyard than shall be actually required for constructing the said embankment and retaining walls thereon and for the diversion of Lady Beck and in no case more than is included within the limits of deviation marked on the deposited plans and shall not after the completion of the works use or occupy for railway purposes any part of the slope of the said new embankment and no station building or other erection other than telegraph posts and wires or sidings shall at any time be placed on the said embankment and no coals minerals goods or other articles shall at any time be deposited thereon. The Company before opening the widening for public traffic shall erect such ornamental iron fence not less than four feet in height along the top of the southern side of the said embankment through the said graveyard and along the top or edge of the said retaining walls excepting always along the retaining wall at the said toe of the slope as shall be approved of by the vicar of Leeds and shall to his reasonable satisfaction for ever thereafter maintain and keep such fence in good repair or renew the same and so from time to time as may be required :

- (4) Before commencing to make the new embankment for the widening of any works affecting the present railway embankment or the said graveyard the Company shall cause to be prepared a plan (in duplicate) on a scale of not less than one-eighth of an inch to one foot and on durable material showing the exact situation and position of all monuments and grave-stones on the southern slope of the said present embankment and in the portion of the said graveyard which will be covered or disturbed in making the said new embankment and also a list (in duplicate) to accompany such plans and containing the

names of the owners or reputed owners (if known) of the monuments and gravestones or the persons interred beneath the same and such plans and lists shall be submitted to the vicar of Leeds for approval and until the same shall have been approved by him the Company shall not remove or interfere with any of the said monuments or gravestones and one copy of the said plan and list when and as so approved shall be kept and preserved by the said vicar and the other copy shall be returned to and kept by the Company :

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Each of such monuments and gravestones shall be distinguished separately on the said plans and lists by a number corresponding in the case of the monuments and gravestones on the said present embankment with the number thereon by which the same is at present identified and in the case of those in the said other portion of the said graveyard which will be covered or disturbed in making the said new embankment with a number which shall be legibly cut or otherwise marked thereon for the better identification thereof and of its situation and position and before commencing to make the said new embankment the Company shall carefully remove the said monuments and gravestones to and shall thenceforth and until such embankment is completed carefully preserve the same in some private and convenient place to be approved of by the said vicar and except as herein-after expressly provided the Company before the opening of the widening shall place and for ever thereafter retain in its proper position each monument or gravestone so removed upon and against the slope of the said new embankment and (as nearly as the said new embankment and the works connected therewith will admit) above the situation and according to the position of the same monument and gravestone previous to the removal thereof the monument and gravestones now laid on the south side of the present embankment being relaid in the same order and relative positions as at present along the upper part of the slope of the said new embankment and the monuments and gravestones taken up

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from the said other portion of the said graveyard being similarly relaid along the lower part of the slope of the new embankment. Provided that in case there shall not be sufficient ground on the slope of the said new embankment for the replacement of all monuments or gravestones to be removed as afore-said the Company shall be at liberty to place any of the said gravestones on the northern slope of the said embankment in positions to be approved by the said vicar of Leeds:

(5) Before the opening of the widening the Company shall prepare and deliver to the vicar of Leeds a plan (in duplicate) on a scale of not less than one-eighth of an inch to one foot and on durable material showing the exact positions of all the monuments and gravestones which have been relaid in the said graveyard by the Company accompanied by a list (in duplicate) containing the names of the owners or reputed owners (if known) of the monuments and gravestones or of the persons whose bodies or remains are re-interred beneath the same respectively which plan and list shall also contain the distinctive numbers of the same monuments and gravestones in order that the positions of such monuments and gravestones may be checked and identified on the ground by the said vicar. And one copy of such plan and list when so checked shall be authenticated by the signatures of the said vicar and the engineer of the Company and shall be preserved by the said vicar for reference and the other copy likewise authenticated shall be returned to and preserved by the Company:

(6) In consideration of and as compensation for the easement and rights by this Act granted to the Company over the said graveyard the Company shall pay to the vicar of Leeds for the time being a perpetual yearly rentcharge of thirty-five pounds free of all deductions and abatements whatsoever except income tax which rentcharge shall commence to be payable as from the date of the passing of this Act and shall be paid by equal half-yearly payments on the first day of January and the first day of July in every succeeding

year the first payment whereof shall be made on such one of the said days as shall first happen next after the date of the passing of this Act a proportionate part thereof only being payable for the first half year in case less than a full half year shall then have elapsed from the date of the passing of this Act and such yearly rentcharge shall be a charge on the tolls rates and charges payable to the Company under this Act and the said vicar shall also be entitled to the like powers and remedies by action against the Company and by distress of their goods and chattels for the recovery of such yearly rentcharge as are conferred by section 11 of the Lands Clauses Consolidation Act 1845 for the recovery of the yearly rents mentioned in that section and the receipt of the said vicar shall be a valid and sufficient discharge to the Company for all moneys paid by them to him under this section.

A.D. 1911.

21. The Company shall not under the powers of this Act construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Board of Trade to be signified in writing under the hand of one of the secretaries or assistant secretaries of the Board of Trade and then only according to such plan and under such restrictions and regulations as the Board of Trade may approve of such approval being signified as last aforesaid and where any such work may have been constructed the Company shall not at any time alter or extend the same without obtaining previously to making any such alteration or extension the like consents or approvals. If any such work be commenced or completed contrary to the provisions of this section the Board of Trade may abate and remove the same and restore the site thereof to its former condition at the costs and charges of the Company and the amount of such costs and charges shall be a debt due from the Company to the Crown and shall be recoverable as a Crown debt or summarily.

Works below high-water mark not to be commenced without consent of Board of Trade.

22. On the completion and opening for public traffic of Railways Nos. 1 and 2 the Company shall abandon and discontinue the use of so much of their Manors North and Tyne-mouth and Avenue Branches as will be rendered unnecessary by the said Railways Nos. 1 and 2.

Abandonment of portions of railway.

A.D. 1911.

As to repair
of roads
where level
not per-
manently
altered.

23. Notwithstanding anything contained in section 46 of the Railways Clauses Consolidation Act 1845 the Company shall not be liable to maintain the surface of any road or public highway which shall be carried over the railways or any of them by a bridge or bridges or the immediate approaches thereto except so far as the level of such road highway or approaches is permanently altered so as to increase the gradient.

Railways
abutting but
not com-
municating
with streets
not to be
chargeable
with private
street ex-
penses.

24. The Company shall be deemed not to be an owner or occupier for the purposes of section 150 of the Public Health Act 1875 in respect of any land acquired or used by the Company for the purposes of the railways upon which any street as defined by the Public Health Acts and not being a highway repairable by the inhabitants at large shall wholly or partially front adjoin or abut and which shall at the time of the laying out of such street be used by the Company solely as a part of their line of railway or siding station or works and shall have no direct communication with such street and the expenses incurred by any urban authority under the powers of the said section which but for this provision the Company would be liable to pay shall be repaid to the urban authority by the owners of the premises fronting adjoining or abutting on the said street other than the Company and in such proportions as shall be settled by the surveyor of the urban authority and in the event of the Company subsequently making a communication with such street they shall notwithstanding such repayment as last afore-said pay to the urban authority the expenses which but for the foregoing provision the Company would in the first instance have been liable to pay and the urban authority shall divide among the owners for the time being other than the Company the amount so paid by the Company to the urban authority less the cost and expenses attendant upon such division in such proportion as shall be settled by the said surveyor whose decision shall be final and conclusive Provided that this section shall not apply to any street existing at the date of the passing of this Act.

Power to
make further
works.

25. Subject to the provisions of this Act the Company may make the works herein-after described and may exercise the powers herein-after mentioned and may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited books of reference relating thereto as may be required for those purposes and so far as the said works are shown on the deposited plans and sections the Company

may make the same in the lines and in accordance with the A.D. 1911.
levels shown on the said plans and sections:—

In the county of Northumberland—

They may in the urban district of Whitley and Monk- (Level
seaton stop up and discontinue the existing level crossing crossing at
over the Company's Manors North and Tynemouth Branch Whitley
250 yards or thereabouts south of Whitley Bay Station. Bay.)

In the county of Durham—

They may in the parish of Cowpen Bewlay stop up and (Cowpen
discontinue the level crossing over the Company's Hartle- Gates Level
pool Branch Railway known as Cowpen Gates No. 1 Crossing.)
Crossing:

Provided that notwithstanding such stopping up and
discontinuance the Postmaster-General shall be entitled
to exercise all such rights of placing and maintaining
telegraphic lines on over along and across the site of
the level crossing as he was entitled to exercise before
the passing of this Act:

They may in the parish of Ferryhill stop up and (Level
discontinue the existing footpath level crossing over the crossing at
Company's Bishop Auckland and Ferryhill Railway 100 East Howle.)
yards or thereabouts west of the point where the road
leading from Ferryhill to Metal Bridge crosses the said
railway on the level:

Provided that until the road between the points marked A
and B shown upon a plan which has been signed in duplicate
by James William Lodge on behalf of the Sedgefield Rural
District Council and by Robert Francis Dunnell on behalf of
the Company has been taken over by the local authority as a
road repairable by the inhabitants at large the Company shall
provide and maintain a footpath for the free and uninterrupted
use of the public at least five feet in width within their railway
fence between the points marked E and G on the said plan and
the footpath between the points marked A and E upon the
said plan shall not be closed by the Company until the said road
has been taken over as aforesaid.

In the North Riding of the county of York—

They may in the parish of Romanby widen on the west (Bridge
side of the Company's York and Newcastle Railway the widenings
bridges carrying the said railway over the road leading at North-
allerton.)

A.D. 1911. from Romanby to Northallerton and the road leading from Northallerton to Boroughbridge at Northallerton Station.

In the East Riding of the county of York—

(Footpath at Pocklington.)

They may in the urban district of Pocklington stop up and discontinue so much of the footpath from Allerthorpe to Railway Street Pocklington as crosses the Company's York and Market Weighton Railway on the level west of Pocklington Station and in substitution therefor make a new footpath between the southern end of the portion of footpath to be so stopped up and the road leading from Canal Head to Pocklington.

Abolition of footways on Hull Dock Estate.

26.—(1) The Company shall construct an overhead footway (in this section referred to as "the overhead footway") of a width of not less than twelve feet along the whole length of the sheds which have been erected by the Company on the riverside quay fronting the River Humber. The overhead footway shall be made and completed in the position shown upon and in all respects in accordance with the plans and sections signed in duplicate by Thomas Monk Newell on behalf of the Company and by Alfred Edward White on behalf of the mayor aldermen and citizens of the city of Kingston-upon-Hull (in this section respectively referred to as "the signed plans" and as "the corporation").

(2) The line of Footway "E" referred to in section 30 subsection (1) of the North Eastern Railway (Hull Docks) Act 1893 shall be along the western side of the bridge over the entrance to the Albert Dock and the Company shall construct steps leading from the said Footway "E" to the overhead footway such steps and the connexion therefrom with the overhead footway to be not less than eight feet wide as shown on the signed plans. Provided that the Company may at any time thereafter temporarily divert the line of the said Footway "E" to the eastern side of the said bridge if necessary for the purposes of the Company's business. The overhead footway shall also be connected with the existing footway west of the Riverside Quay by steps as shown on the signed plans.

(3) The southern side of the overhead footway and of the connexion with the same at the western end and both sides of the said connexion with the said Footway "E" shall be fenced with such suitable fences as may be agreed upon between the corporation and the Company of not more than three feet nine

inches high. Provided that the Company may erect higher or close fences at any point on the said connexions where such fences are desirable for the protection of their adjoining works and dock estate. The north side of the overhead footway and of the western connexion therewith shall also be fenced in a safe and suitable manner. A.D. 1911.

(4) The overhead footway shall upon completion be used solely as a way for the use of the public and no part thereof shall be used by the Company for any business or private purpose and the overhead footway and connexions therewith including the said steps shall at all times be kept in a good and proper state of repair by and at the cost of the Company.

(5) The construction of the overhead footway and connexions shall be completed within one year from the passing of this Act and upon such completion the same shall be substituted for all rights of way at present existing on that part of the Company's Dock Estate between the Albert Dock and the River Humber which is co-extensive in length with the riverside quay and the Company may upon such completion stop up abolish discontinue and extinguish all rights of way for which the overhead footway is substituted as aforesaid and so much of Footway "E" as lies to the south of the steps to be constructed to give access to the connexion with the overhead footway.

(6) If at any time the Company extend their riverside quay and works in a westerly direction up to or towards their point of termination authorised by the North Eastern Railway Act 1905 they shall if they extend the existing sheds in a continuous line by a type of shed similar to those already existing so as to permit of the overhead way being continued at the same or approximately the same level similarly extend the overhead way and shall make a connexion with steps with the Footway "F" referred to in section 30 subsection (1) of the North Eastern Railway (Hull Docks) Act 1893 similar to that hereinbefore provided in respect of the said Footway "E" and also a connexion with steps with the footway on the west.

(7) If the Company do not erect or so far as they do not erect such additional sheds as aforesaid they shall provide for the use of the public a right of footway over and along a roadway (which roadway shall be as near to the River Humber as the works of the Company will allow and shall be not less than twelve feet in width and shall be kept in repair by and at the cost of the Company) along the entire length of any such

A.D. 1911. — extended works and shall also provide proper connexions with the overhead way on the east and the existing footway on the west and also to the Footway "F" on the north. Such right of footway shall be free and unobstructed save that the Company may place such lines of rails as may be reasonably necessary for their business across (but not along) the same but no trucks wagons or vehicles shall be allowed to remain standing so as to obstruct such right of footway.

(8) When the said roadway and connexions or the extended overhead way and connexions as the case may be shall have been completed the Company may stop up abolish discontinue and extinguish all existing rights of way over or along that part of their estate which is co-extensive in length with the said roadway and so much of Footway "F" as lies to the south of the said roadway or connexion with the extended overhead way as the case may be.

(9) All footways provided under the provisions of this section shall be open between one hour before sunrise and one hour after sunset only. Provided that this subsection shall not apply to the rights of footway referred to in subsection (14).

(10) The Company and the corporation jointly (or either of them in case the other of them neglects or refuses so to do) may make byelaws to be confirmed by the Board of Trade to provide for the good conduct of persons using the overhead footway and the provisions of the Harbours Docks and Piers Clauses Act 1847 with respect to the byelaws to be made by the undertakers (other than so much thereof as defines the purposes for which byelaws may be made) shall subject to the provisions of this Act apply to and in respect of such byelaws as if the party or parties making such byelaws were the undertakers.

(11) Nothing in this Act contained shall prevent persons from landing or embarking at either of the two sets of landing steps shown on the signed plans or from passing therefrom or thereto over the Company's estate to or from the city.

(12) The said landing steps if not already so constructed shall be so altered or added to by the Company as to enable passengers to land or embark at all states of the tide.

(13) The Company shall allow all persons to land on the Company's quay above the said steps at any time when the height of water is such as to submerge the steps on the front of the quay.

(14) The rights of footway at present existing on the southern side of the Company's Drypool Basin Lock and entrance shall be replaced by rights of footway in the positions shown by a dotted red line on the signed plans and the Company shall remove so much of the building which has been commenced near the north-east corner of the Buoy Shed Yard of the Humber Conservancy Board as is coloured red on the signed plans in order to provide at that point a width of five feet at least for such substituted footway. A.D. 1911.

(15) So soon as such substituted rights of footway are available for the use of the public the Company may stop up abolish discontinue and extinguish all rights of way over the parts of the Footway "N" referred to in section 30 of the North Eastern Railway (Hull Docks) Act 1893 for which a substitute is by the preceding subsection provided and thereafter the provisions of the said section 30 shall apply to such substituted rights of footway as if the same formed part of the said Footway "N."

27. So much of section 34 of the Hull Docks Act 1861 section 30 of the North Eastern Railway (Hull Docks) Act 1893 and section 22 of the North Eastern Railway Act 1905 as relates to the rights of footway on the Company's Hull Dock Estate which are to be abolished stopped up discontinued and extinguished under the powers of the section of this Act of which the marginal note is "Abolition of footways on Hull Dock Estate" are hereby repealed as from the dates at which such rights of footway respectively are by the said section abolished stopped up discontinued and extinguished: Repeal of provisions as to footways on Hull Dock Estate.

Provided that nothing in this Act contained shall be deemed to prejudice lessen restrict or interfere with any existing rights of access both by land and by water of the Humber Conservancy Board their officers and servants on to and over the Company's Albert Dock and riverside quay whilst in the execution of their duties.

28. Subject to the provisions of this Act the Company in addition to the other lands which they are by this Act authorised to acquire may enter upon take use and appropriate for the purpose of altering or extending their works or providing further or improved accommodation for the traffic on their railway or providing accommodation for persons of the working class who may be displaced under the powers of this Act or any other Act relating to the Company or for any other purposes Power to Company to purchase additional lands.

A.D. 1911. connected with their undertaking all or any of the lands hereinafter described or referred to and delineated on the deposited plans and described in the deposited books of reference relating thereto and may exercise the powers herein-after mentioned (that is to say):—

In the county of Northumberland—

(Benton.)

Certain lands in the parish of Longbenton situate on the south side of and adjoining the Company's Blyth and Tyne Railway extending between points 200 yards or thereabouts and 500 yards or thereabouts west of the point where that railway crosses the Killingworth Wagon Way on the level:

(Scotswood.)

Certain lands in the city and county borough of Newcastle-upon-Tyne situate on the east side of and adjoining Denton Road and lying over the tunnel through which the Company's Scotswood and Newburn Railway passes:

(Alnmouth.)

Certain lands in the parish of Lesbury situate on the west side of and adjoining the Company's Newcastle and Berwick Railway and extending for a distance of 600 yards or thereabouts from the south-east end of Alnmouth Station:

(Plessey.)

Certain lands in the parish of Stannington situate on both sides of and adjoining Shotton Lane and the Company's Newcastle and Berwick Railway at Plessey Station.

In the county of Durham—

(Derwenthaugh and diversion of footpath.)

Certain lands in the urban district of Whickham situate on the south side of and adjoining the Company's Derwenthaugh Branch at West Dunston 600 yards or thereabouts east of the River Derwent and in connexion therewith the Company shall as soon as they shall have acquired such lands divert in a south-westerly direction in the manner shown on the deposited plans the footpath in that urban district authorised by the North Eastern Railway Act 1909 between points respectively 330 yards or thereabouts and 730 yards or thereabouts east of the bridge carrying the Company's Redheugh Branch over the River Derwent:

(Tyne Dock.)

Certain lands in the county borough of South Shields situate on the west side of and adjoining the Company's

Newcastle and South Shields Railway at Templetown and 120 yards or thereabouts north of Saint Mary's Church: A.D. 1911.

Certain lands in the parish of Chilton situate on both sides of and adjoining the Company's Ferryhill and Stockton Railway 400 yards or thereabouts south-east of the junction of that railway with the Newcastle and Darlington Railway of the Company and certain lands on the east side of the Company's Ferryhill and Stockton Railway near the south end of Ferryhill Station: (Ferryhill.)

Certain lands in the parish of Great Aycliffe situate between the east side of the Company's Newcastle and Darlington Railway and the west bank of the River Skerne at Aycliffe Station: (Aycliffe.)

Certain lands in the parish of Shotton situate between and adjoining the Company's Sunderland and Hartlepool Railway and their Thornley Branch at Thornley Station: (Thornley Station.)

Certain lands in the parish of Norton situate on the north side of and adjoining the Company's West Hartlepool Branch at Norton Station: (Norton.)

Certain lands in the parish of Medomsley situate on the north side of and adjoining the road leading from Ebchester to Swalwell 110 yards or thereabouts west of Christ Church Low Westwood: (Low Westwood.)

Certain lands in the county borough of Sunderland situate on the north side of and adjoining the Company's graving dock on the River Wear: (Monkwearmouth.)

Certain lands in the county borough of Gateshead lying on the west side of and adjoining the Company's Dunston Extension Railway near the Gateshead Union Workhouse and situate between that railway and the River Team: (Gateshead.)

Certain lands in the parishes of Monkton Boldon and Boldon Colliery situate near Brockley Whins Station extending from the north side of the Company's Newcastle and Sunderland Branch to the east side of the Company's Pontop and South Shields Branch and to Harden Farm: (Brockley Whins.)

Certain lands in the urban district of Crook situate on both sides of the Company's West Durham Junction Railway and adjoining the level crossing at Billy Row: (Billy Row.)

A.D. 1911.

(Hartlepool
—Friend-
ship Lane.)

(Hartlepool
—Cemetery
Junction
North.)

(Darlington
and diversion
of footpath
and bridge
widening.)

Certain lands in the borough of Hartlepool situate at the north-western extremity and forming part of Friendship Lane :

Certain lands in the borough of Hartlepool situate on the north-east side of and adjoining the Company's Hartlepool and Sunderland Railway at Cemetery Junction North :

Certain lands in the borough of Darlington and in the parish of Blackwell situate upon the west side of and adjoining the Company's York and Newcastle Railway and lying to the south of the South Junction Signal Box and in connexion therewith the Company may widen on the western side of the said railway the bridge carrying such railway over the road leading from the South Park to Neasham Road and may divert in a westerly direction to a point 20 yards or thereabouts from the said bridge so much of the footpath leading from Park Lane to the said bridge as lies between that bridge and a point on the footpath 50 yards or thereabouts from such bridge :

Provided that in constructing the said bridge widening the Company shall leave a space of three feet for ventilation and light between the girders of the said widening and the arch of the existing bridge and the span of the said widening shall not be less than twenty-five feet and the headway not less than fourteen feet.

In the North Riding of the county of York—

(Bowes.)

Certain lands in the parishes of Boldron and Bowes situate on both sides of and adjoining the Company's Barnard Castle and South Durham Railway at Hulands Quarry near Bowes and extending between the roads leading from Bowes to Greta Bridge and from Bowes to Barnard Castle :

(Wiske Moor
North-
allerton.)

Certain lands in the urban district of Northallerton and in the parishes of Brompton (detached) and Lazenby situate upon both sides of and adjoining the Company's York and Newcastle Railway between Zetland Bridge and the thirty-third mile post from York :

(Hutton
Gate.)

Certain lands in the parish of Hutton Lowcross situate upon the south side of and adjoining the Company's Guisborough Branch and 450 yards or thereabouts east of Hutton Gate Station :

[1 & 2 GEO. 5.] *North Eastern Railway Act, 1911.* [Ch. xciv.]

Certain lands in the urban district of South Bank in A.D. 1911.
Normanby situate upon the north side of and adjoining (South
the Company's Darlington and Saltburn Railway and Bank.)
lying between a point 50 yards or thereabouts west of
the Cargo Fleet Iron Company's Bridge over the said
railway and the Tees Tilery Signal Box.

In the West Riding of the county of York—

Certain lands in the parish of Sherburn situate upon the (South
west side of and adjoining the public road leading from Milford.)
Sherburn-in-Elmet to South Milford and lying 580 yards
or thereabouts north of the Company's South Milford
Station:

Certain lands in the parish of South Milford situate (Gascoigne
upon the north side of and adjoining the Company's Wood.)
Leeds and Selby Railway and sidings at Gascoigne Wood
near Hagg Lane Level Crossing:

Certain lands in the city and county borough of Leeds (Headingley
situate upon the west side of and adjoining the Com- —Leeds.)
pany's Leeds Northern Railway between Ashville Road
and Park View Road.

In the East Riding of the county of York—

Certain lands in the parish of Barlby situate upon the (Barlby—
north-west side of and adjoining the Company's York Selby.)
and Doncaster Railway near Halfway House:

Certain lands in the city and county borough of King- (Hull—Wil-
ston-upon-Hull situate upon both sides of and adjoining mington.)
the Company's Hornsea Branch near the bridge carrying
that railway over the Lambwath Stream:

Certain lands in the city and county borough of King- (Hull—
ston-upon-Hull situate to the south of the Company's Southcoates
Withernsea Branch between Southcoates Lane and the Lane and
Hedon Road Borough Cemetery and in connexion there- diversions of
with the Company may divert in a southerly direction to footpath.)
the extent of 16 yards or thereabouts so much of the foot-
path connecting Southcoates Lane and Marfleet as adjoins
and is co-extensive with the northern boundary of the
Hedon Road Borough Cemetery and may also divert in an
easterly direction along the southern boundary of the Com-
pany's Withernsea Branch for a distance of 180 yards or
thereabouts and thence in a northerly direction carrying

A.D. 1911.

the same by means of a footbridge over the Company's Withernsea Branch so much of the said footpath from the point where it crosses the Company's Withernsea Branch on the level to a point on the said footpath 30 yards or thereabouts west of Vickermans Bridge and in connexion therewith they may stop up and abolish the said level crossing :

(Wassand.)

Certain lands in the parish of Goxhill situate on the west side of and adjoining the Company's Hornsea Branch and on the south side of and adjoining the Company's Wassand Station Yard :

(Everingham.)

Certain lands in the parish of Holme-upon-Spalding-Moor situate upon the south side of and adjoining the Company's Selby and Market Weighton Railway at Everingham Station.

For protection of corporation of Hartlepool.

29. For the protection of the mayor aldermen and burgesses of the borough of Hartlepool (in this section referred to as "the corporation") the following provisions shall unless otherwise agreed between the Company and the corporation apply and have effect (that is to say):—

The Company shall grant and the corporation shall take (without making any payment therefor) an easement or right of making and maintaining a road in the position coloured brown between the points A and B and F and D upon the plan signed by Robert Francis Dunnell on behalf of the Company and Herbert Wright Bell on behalf of the corporation and thereupon all public rights of way (if any) over the lands numbered on the deposited plans 2 in the borough of Hartlepool except so much thereof as is coloured brown on the said plan shall be extinguished.

For protection of Cargo Fleet Iron Company.

30. For the protection of Sir Jonathan Edmund Backhouse William Barclay Peat and Leonard Bernard Schlesinger their heirs and assigns (herein-after referred to as "the trustees") and the Cargo Fleet Iron Company Limited (herein-after referred to as "the iron company") their successors and assigns the following provisions shall unless otherwise agreed between the Company and the trustees and the iron company have effect (that is to say):—

Nothing in this Act shall extend to deprive or enable the Company in the exercise of the powers conferred upon them by this Act in connexion with the lands in the

urban district of South Bank in Normanby described A.D. 1911.
in the section of this Act of which the marginal note
is "Power to Company to purchase additional lands"
to deprive the trustees or the iron company of any
rights or interests reserved to the trustees or the iron
company under an indenture dated the twenty-ninth day
of November one thousand nine hundred and nine and
made between the trustees of the first part the Weardale
Steel Coal and Coke Company Limited of the second part
the iron company of the third part and the Company of
the fourth part.

31. The Company in constructing the works next herein-
after referred to over the roads next herein-after mentioned
may make the arches of the bridges of any heights and spans
not less than the heights and spans herein-after mentioned in
connexion therewith respectively (that is to say):—

Height and
span of
bridges.

No. on deposited Plans.	Parish.	Description of Road.	Height.	Span.
WIDENING (No. 1) OF NEWBIGGIN BRANCH.				
3	Woodhorn - -	Public - - -	14.75 feet	24 feet.
BRIDGE WIDENINGS AT NORTHALLERTON.				
1	Romanby - -	Public - - -	14.62 feet	20 feet.

32. Where this Act authorises the diversion of a road or
footpath or the making of a new road or footpath and the
stopping up of an existing road or footpath or portion thereof
such stopping up shall not take place until such new road or
footpath is completed to the satisfaction of the road authority
and is open for public use or in case of difference between the
Company and the road authority until two justices shall have
certified that the new road or footpath has been completed to
their satisfaction and is open for public use.

Stopping up
roads and
footpaths in
case of
diversion.

Before applying to the justices for their certificate the
Company shall give to the road authority of the district in
which the existing road or footpath is situate seven days' notice
in writing of their intention to apply for the same.

As from the completion to the satisfaction of the road
authority of the new road or footpath or as from the date of
the said certificate as the case may be all rights of way over or

A.D. 1911. along the existing road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the site of the portion of road or footpath stopped up as far as the same is bounded on both sides by lands of the Company:

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Stopping up roads and footpaths without providing substitutes.

33. Where this Act authorises the stopping up of a road or footpath or portion thereof without providing a substitute such stopping up shall not take place unless the Company are owners in possession of all houses and lands in the case of the stopping up of "The Calls" authorised by the section of this Act of which the marginal note is "Power to Company to make railways" on the north side thereof and in all other cases on both sides thereof except so far as the owners lessees and occupiers of such houses and lands may otherwise agree and from and after such stopping up all rights of way over or along the road or footpath or portion authorised to be stopped up shall be extinguished and the Company may subject to the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near to the railway appropriate and use for the purposes of their undertaking the sites of the roads or footpaths or portions of roads or footpaths so stopped up:

Provided that the Company shall make full compensation to all parties interested in respect of any private rights of way extinguished by virtue of this section and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement.

Provisions as to repair of roads and footpaths.

34. Any road or footpath or portion of road or footpath to be made diverted or altered under the authority of this Act (except the stone iron or other structure carrying any such road or footpath over the railway which structure shall unless otherwise agreed be maintained by and at the expense of the Company) shall when made and completed unless otherwise

agreed be maintained by and at the expense of the body or persons liable to maintain roads or footpaths of the same nature and in the same parish and district as the road or footpath or portion of road or footpath in question. A.D. 1911.

35. Subject to the provisions of this Act all private rights of way over any lands which shall under the powers of this Act be acquired compulsorily shall as from the date of such acquisition be extinguished. Provided that the Company shall make full compensation to all parties interested in respect of any such rights and such compensation shall be settled in manner provided by the Lands Clauses Acts with reference to the taking of lands otherwise than by agreement. As to rights of way over lands acquired.

36. In constructing the works by this Act authorised the Company may deviate from the lines of any of the said works shown on the deposited plans thereof to the extent of the limits of deviation marked on the deposited plans and may deviate from the levels of any of the said works (other than the railways) shown on the deposited sections thereof to any extent not exceeding two feet but not so as to increase the rate of inclination of any new or diverted road as shown on the said sections and may deviate from the levels of the railways shown on the deposited sections in accordance with the provisions of the Railways Clauses Consolidation Act 1845. Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade. Power to deviate in construction of works.

37. The powers of the Company for the compulsory purchase of lands for the purposes of this Act shall cease after the expiration of three years from the passing of this Act. Period for compulsory purchase of lands.

38. And whereas in the construction of the works by this Act authorised or otherwise in the exercise by the Company of the powers of this Act it may happen that portions only of certain properties shown or partly shown on the deposited plans will be sufficient for the purposes of the Company and that such portions or some other portions less than the whole can be severed from the remainder of the said properties without material detriment thereto. Therefore the following provisions shall have effect:— Owners may be required to sell parts only of certain properties.

- (1) The owner of and persons interested in any of the properties whereof the whole or part is described

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in the First Schedule to this Act and whereof a portion only is required for the purposes of the Company or each or any of them are herein-after included in the term "the owner" and the said properties are herein-after referred to as "the scheduled properties":

(2) If for twenty-one days after the service of notice to treat in respect of a specified portion of any of the scheduled properties the owner shall fail to notify in writing to the Company that he alleges that such portion cannot be severed from the remainder of the property without material detriment thereto he may be required to sell and convey to the Company such portion only without the Company being obliged or compellable to purchase the whole the Company paying for the portion so taken and making compensation for any damage sustained by the owner by severance or otherwise:

(3) If within such twenty-one days the owner shall by notice in writing to the Company allege that such portion cannot be so severed the jury arbitrators or other authority to whom the question of disputed compensation shall be submitted (herein-after referred to as "the tribunal") shall in addition to the other questions required to be determined by it determine whether the portion of the scheduled property specified in the notice to treat can be severed from the remainder without material detriment thereto and if not whether any and what other portion less than the whole (but not exceeding the portion over which the Company have compulsory powers of purchase) can be so severed:

(4) If the tribunal determine that the portion of the scheduled property specified in the notice to treat or any such other portion as aforesaid can be severed from the remainder without material detriment thereto the owner may be required to sell and convey to the Company the portion which the tribunal shall have determined to be so severable without the Company being obliged or compellable to purchase the whole the Company paying such sum for the portion taken by them including compensation for any damage

sustained by the owner by severance or otherwise as A.D. 1911.
shall be awarded by the tribunal:

- (5) If the tribunal determine that the portion of the scheduled property specified in the notice to treat can notwithstanding the allegation of the owner be severed from the remainder without material detriment thereto the tribunal may in its absolute discretion determine and order that the costs charges and expenses incurred by the owner incident to the arbitration or inquiry shall be borne and paid by the owner:
- (6) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto (and whether or not they shall determine that any other portion can be so severed) the Company may withdraw their notice to treat and thereupon they shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice:
- (7) If the tribunal determine that the portion of the scheduled property specified in the notice to treat cannot be severed from the remainder without material detriment thereto but that any such other portion as aforesaid can be so severed the Company in case they shall not withdraw the notice to treat shall pay to the owner all costs charges and expenses reasonably and properly incurred by him in consequence of such notice or such portion thereof as the tribunal shall having regard to the circumstances of the case and their final determination think fit.

The provisions of this section shall be in force notwithstanding anything in the Lands Clauses Consolidation Act 1845 contained and nothing contained in or done under this section shall be held as determining or as being or implying an admission that any of the scheduled properties or any part thereof is or is not or but for this section would or would not be subject to the provisions of section 92 of the Lands Clauses Consolidation Act 1845.

The provisions of this section shall be stated in every notice given thereunder to sell and convey any premises.

39. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the

Power to
owners to
grant ease-
ments &c.

A.D. 1911. provisions of those Acts and of this Act grant to the Company any easement right or privilege (not being an easement right or privilege of water in which persons other than the grantors have an interest) required for the purposes of this Act in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Removal of
human
remains.

40.—(1) If and when the Company shall acquire any easement over any portion of Saint Peter's Graveyard in the city and county borough of Leeds they shall before applying or using any part thereof for the purposes of the Widening (No. 4) and alteration of the Company's Leeds and Selby Railway by this Act authorised remove or cause to be removed the remains of all deceased persons interred in the said part thereof which will be disturbed or interfered with by the Company's operations.

(2) Before proceeding to remove any such remains the Company shall publish a notice for three successive days in two local newspapers circulating in the said city and county borough to the effect that it is intended to remove such remains and such notice shall have embodied in it the substance of subsections (3) (4) (5) (6) and (7) of this section.

(3) Any time within two months after the first publication of such notice any person who is an heir executor administrator or relative of any deceased person whose remains are interred in the said graveyard may give notice in writing to the Company of his intention to undertake the removal of such remains and thereupon he shall be at liberty without any faculty for the purpose but subject as herein-after mentioned to any regulations made by the bishop of the diocese of Ripon to cause such remains to be removed to and re-interred in any consecrated burial ground or cemetery in which burials may legally take place.

(4) If any person giving such notice as aforesaid shall fail to satisfy the Company that he is such heir executor administrator or relative as he claims to be the question shall be determined on the application of either party in a summary manner by the registrar of the consistory court of the diocese of Ripon who shall have power to make an order specifying who shall remove the remains.

(5) The expense of such removal and re-interment (not exceeding in respect of remains removed from any one grave

[1 & 2 GEO. 5.] *North Eastern Railway Act, 1911.* [Ch. xciv.]

the sum of ten pounds) shall be defrayed by the Company such sum to be apportioned if necessary equally according to the number of the remains in the grave. A.D. 1911.

(6) If within the aforesaid period of two months no such notice as aforesaid shall have been given to the Company in respect of the remains in any grave or if after such notice has been given the persons giving the same shall fail to comply with the provisions of this section and with any regulation of the said bishop the Company may without any faculty for that purpose remove the remains of the deceased person and cause them to be re-interred in such consecrated burial ground or cemetery in which burials may legally take place as the Company think suitable for the purpose subject to the consent of the said bishop.

(7) All monuments and tombstones relating to the remains of any deceased person removed under this section shall at the expense of the Company be removed and re-erected at the place of re-interment of such remains or at such place within the said city and county borough as the said bishop may direct on the application (if any) of such heir executor administrator or relative as aforesaid or failing such application on the application of the Company.

(8) The removal of the remains of any deceased person under this section shall be carried out under the supervision and to the satisfaction of the medical officer of health of the said city and county borough.

41. The period limited by the Orders of 1901 to 1907 for the construction and completion of the Brackenhill Light Railway thereby authorised is hereby extended for a period of five years from the passing of this Act. Extension of time for completion of Brackenhill Light Railway.

42. The Whickham Urban District Council (herein-after in this section referred to as "the district council") shall contribute the sum of five hundred pounds towards the cost of works to be executed by the Company for the protection of the level crossing over their Redheugh Branch Railway at Dunston and they may in addition to any moneys now borrowed by them or which they are now authorised to borrow or which they may be authorised to borrow under the provisions of any public Act borrow at interest the said sum of five hundred pounds and the provisions of sections 236 to 239 of the Public Health Act 1875 shall be applicable to any mortgage granted by the district Power to Whickham Urban District Council to contribute towards cost of works for protecting Dunston level crossing and power to borrow.

A.D. 1911. — council under this section. Any moneys borrowed by the district council under this Act and the interest payable thereon shall be respectively charged on the district fund and general district rate of the urban district of Whickham and shall be repaid within thirty years from the date of borrowing the same in accordance with the provisions of the Public Health Act 1875 as if the same were borrowed under that Act.

Return to
Local
Government
Board as to
repayment
of debt.

43.—(1) The clerk of the Whickham Urban District Council shall within twenty-one days after the 31st day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Act or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the said clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of his failing to make such return the said clerk shall for each offence be liable to a penalty not exceeding twenty pounds to be recovered by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

(2) If it appears to the Local Government Board by that return or otherwise that the Whickham Urban District Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this

Act or by the Local Government Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court. A.D. 1911.

44. And whereas lands have from time to time been purchased or acquired by the Company and by joint committees incorporated by Act of Parliament on which the Company may be represented adjoining or near to railways or stations belonging to the Company or belonging to or managed by such a joint committee but such lands are not immediately required for the purposes of the undertaking of the Company or of such joint committee as the case may be and it is expedient that further powers should be conferred upon the Company and such joint committees respectively with respect to such lands Therefore notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 or in any Act relating to the Company or any such joint committee with which that Act is incorporated the Company or any such joint committee shall not be required to sell or dispose of any such lands but may retain hold or use or may sell lease or otherwise dispose of the same. Power to lease lands &c.

45. The Company may subscribe such moneys as they may think fit but not exceeding in the whole five thousand pounds towards the undertaking of the Derwent Valley Company whether for shares or debentures or debenture stock and may invest moneys in or upon the mortgages or other securities of the Derwent Valley Company and the Company shall in respect of the sums to be subscribed and the corresponding shares in or debentures or debenture stock of the Derwent Valley Company to be held by them and in respect of any mortgages or other securities of the Derwent Valley Company in or upon which they shall have invested moneys have all the powers rights and privileges (except in regard to voting at meetings which shall be as herein-after provided) and be subject to all the obligations and liabilities of proprietors of like shares in or holders of like securities of the Derwent Valley Company (as the case may be). Power to Company to subscribe to undertaking of Derwent Valley Company.

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Power to
Company
to nominate
directors of
Derwent
Valley
Company.

46.—(1) The Company may in respect of the sum which they may subscribe towards the undertaking of the Derwent Valley Company (whether for shares or debentures or debenture stock or which they may invest in or upon the mortgages or other securities of that company) nominate one person to be a director of the Derwent Valley Company.

(2) Every such nomination shall be made in writing under the seal of the Company and shall be deposited with the secretary of the Derwent Valley Company and may in like manner be revoked and renewed.

(3) Any director so to be nominated by the Company shall be in addition to the number of directors elected by the shareholders of the Derwent Valley Company.

(4) Any director of the Derwent Valley Company nominated by the Company shall enter upon office immediately upon his appointment and shall be entitled to the like fees emoluments rights and privileges and shall have and may exercise the like powers and privileges as the directors elected by the Derwent Valley Company.

(5) Any director of the Derwent Valley Company nominated by the Company shall remain in office until his appointment be revoked by the Company or until he die or resign and no such director need be a holder of shares in the Derwent Valley Company or in the Company.

Votes of
Company at
meetings of
Derwent
Valley
Company.

47. The Company whilst holders of shares in or securities of the Derwent Valley Company may by writing under their common seal from time to time appoint some person to attend any meeting of the Derwent Valley Company and such person shall have all the privileges and powers attaching to a holder of like shares or like securities of the Derwent Valley Company at such meeting and may (subject to the regulations with respect to voting applicable to the Derwent Valley Company) vote thereat in respect of the shares or securities held by the Company.

Removal of
stranded or
sunk vessels.

48.—(1) Whenever any vessel is sunk stranded or abandoned in or near the Company's docks or riverside quays or any approaches thereto the Company may cause that vessel to be raised or removed or to be blown up or otherwise destroyed so as to clear such docks riverside quays or approaches therefrom.

(2) The Company may cause any such vessel and any vessel raised or removed by any other authority at the Company's

expense and the furniture tackle and apparel thereof or any part thereof respectively which shall be raised or saved and also all or any part of the cargo goods chattels and effects which may be raised or saved from any such vessel to be sold in such manner as they think fit (subject to such notice being given of the intended sale as is prescribed by the first proviso to section 530 of the Merchant Shipping Act 1894) and out of the proceeds of sale may reimburse themselves for the expenses incurred by them under this section or in reimbursing any such other authority as aforesaid and also for any expenses incurred by them in marking buoying watching lighting or otherwise controlling the vessel and shall hold the surplus (if any) of the proceeds of sale in trust for the persons entitled thereto: A.D. 1911.

Provided always that the Company shall before selling any such cargo goods chattels or effects as aforesaid pay all duties which may be payable to His Majesty in respect to the cargo goods chattels or effects to be sold and they may retain the amount of the duties so paid out of the proceeds arising from the sale of such cargo goods chattels or effects.

(3) If the proceeds of sale are insufficient to reimburse the Company for the aforesaid expenses the Company may recover the deficiency or in case of an appeal under subsection (4) of this section such sum as is awarded by the arbitrator to be payable in respect of the deficiency from the person who at the time of the sinking stranding or abandonment of the vessel was the registered owner of the vessel or from the executors or administrators of such owner as a debt either summarily as a civil debt or in any court of competent jurisdiction.

(4) If on demand being made under this provision for payment of any deficiency the person on whom the demand is made is dissatisfied with the amount demanded he may within fourteen days after the receipt of the demand appeal to the Board of Trade who shall appoint an arbitrator to determine and award whether any and if any what sum is payable in respect of the deficiency and the award of the arbitrator appointed by the Board of Trade that no sum is payable or as to the sum payable as the case may be shall be conclusive and binding on both parties. The costs of the appeal and the award shall be in the absolute discretion of the arbitrator and he shall award and order how those costs are to be borne and paid and any costs so awarded and ordered to be paid by either party may be recovered by the other party in the same manner as the sum payable in

A.D. 1911. — respect of the deficiency is recoverable under subsection (3) of this section.

(5) The powers given to the Company by subsection (1) of this section shall not be exercised if the registered owner of the vessel sunk stranded or abandoned shall in the case of a vessel sinking or becoming stranded or abandoned on the entrance sill of any of the Company's docks immediately or in any other case within twenty-four hours after the vessel shall have been stranded or sunk take such steps as may in the opinion of the Company's chief engineer for docks be necessary for the raising or removal of the vessel and shall thenceforth continuously and diligently and to the satisfaction of such chief engineer for docks prosecute and do all such works and things as may in the opinion of such chief engineer for docks be necessary and proper for the raising and removal of the vessel as speedily as possible.

(6) Provided that the provisions of this section shall not be exercised within the area of the jurisdiction of the Humber Conservancy Board except with the consent of that board in writing under the hand of their clerk being first had and obtained and under and subject to such conditions as may be reasonably approved by the engineer of the said board or by such other officer of the said board as may be appointed by them for the purpose.

(7) Provided also that the provisions of this section shall not be exercised within the area of the jurisdiction of the Tyne Improvement Commissioners without their consent.

(8) The powers conferred by this section on the Company shall be in addition to and not in substitution for or derogation of any other powers exerciseable by them for or with respect to the removal of wrecks.

Power to
Company to
apply funds.

49. The Company may appropriate and apply to all or any of the purposes or objects of this Act being purposes to which capital is properly applicable any of the moneys which under and by virtue of any existing Acts they have raised or are authorised to raise and which may not be required for the purposes to which they are by those Acts made specially applicable.

Power to
Company to
raise addi-
tional capi-
tal.

50. The Company may raise by the creation and issue of new stock the sum of four hundred and fifty thousand pounds in addition to the moneys which they are or may be authorised

to raise by any other Act or Acts of Parliament and such new stock may be created and issued either wholly or partially as preference stock. A.D. 1911.

51. The new stock by this Act authorised shall unless otherwise provided by the terms of issue or creation thereof confer on the respective holders thereof the same rights of voting and qualifications as if such new stock were part of the existing stock of the Company. Rights of voting for new stock in capital of Company.

52. The Company may by the resolution creating or authorising the creation of any of the new preference stock by this Act authorised determine that such new stock shall form part of and rank *pari passu* with the North Eastern Railway Preference Stock created and issued under the powers contained in the North Eastern Railway Act 1895. New preference stock to rank *pari passu* with North Eastern Railway Preference Stock if so determined.

53. Notwithstanding anything contained in Part II. of the Companies Clauses Act 1863 the Company may in issuing any of the new stock by this Act authorised dispose of the same at such times to such persons on such terms and conditions and in such manner as the directors think advantageous to the Company. As to disposal of new stock.

54. The Company may borrow on mortgage of their undertaking in addition to any other sums which they are or may be authorised to borrow by any other Act or Acts of Parliament any sum or sums not exceeding in the whole one-third part of the amount of the new stock by this Act authorised to be created and issued and at the time actually issued and accepted. Power to borrow.

But no part thereof shall be borrowed until a sum equal to one half of the stock so issued and accepted has been *bonâ fide* paid in respect thereof and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock is held by the persons to whom the same was issued or their executors administrators successors or assigns and that the said sum has been *bonâ fide* paid in respect thereof.

Upon production to such justice of the books of the Company and of such other evidence as he may think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

55. Every provision in any Act passed before the present session of Parliament whereby the Company is authorised to For appointment of a receiver.

A.D. 1911. — raise by borrowing money for the purposes of their undertaking with respect to the appointment of a receiver for enforcing payment by the Company of arrears of principal money or interest or principal money and interest shall be and the same is hereby repealed but without prejudice to any appointment which may have been made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under any such provision.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver and in order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Existing mortgages to have priority.

56. All mortgages granted by the Company in pursuance of the powers of any Act of Parliament before the passing of this Act and subsisting at the passing hereof shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act.

Application of moneys.

57. All moneys raised under this Act whether by stock or borrowing shall be applied only to the purposes of this Act and to the general purposes of the Company being in each case purposes to which capital is properly applicable.

Interest not to be paid on calls paid up.

58. No interest or dividend shall be paid out of any share or loan capital which the Company are by this or any other Act authorised to raise to any shareholder on the amount of the calls made in respect of the shares held by him but nothing in this Act shall prevent the Company from paying to any shareholder such interest on money advanced by him beyond the amount of the calls actually made as is in conformity with the Companies Clauses Consolidation Act 1845.

Deposits for future Bills not to be paid out of capital.

59. The Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Company to construct any other railway or to execute any other work or undertaking.

[1 & 2 GEO. 5.] *North Eastern Railway Act, 1911.* [Ch. xciv.]

60. Nothing in this Act contained shall exempt the Company or any other company or committee upon whom any powers are conferred by this Act or their respective railways from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies passed before or after the commencement of this Act or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels authorised to be taken by the said companies and committees respectively.

A.D. 1911.
Provision as
to general
Railway
Acts.

61. Nothing in this Act affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Company to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
rights.

62. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

Costs of Act.

A.D. 1911.

SCHEDULES referred to in the foregoing Act.

THE FIRST SCHEDULE.

DESCRIBING PROPERTIES WHEREOF THE OWNERS MAY BE
REQUIRED TO SELL PARTS ONLY.

Area.	Nos. on deposited Plans.	Description of Property as in the Books of Reference.
WIDENING (No. 1) OF NEWBIGGIN BRANCH.		
Parish of Woodhorn - - - - -	2	Land and sidings.
Parish of Woodhorn Demesne - - - - -	4	Land and sidings.
WIDENING (No. 4) AND ALTERATION OF LEEDS AND SELBY RAILWAY.		
City and county borough of Leeds - - - - -	75	Yard and shed.
" " " " - - - - -	89	Vacant land.
" " " " - - - - -	150	Slaughter-house
" " " " - - - - -	151	Piggery.
" " " " - - - - -	152	Yard.
" " " " - - - - -	153	Stable.
" " " " - - - - -	154	Piggery.
" " " " - - - - -	210	Malt-kiln.

THE SECOND SCHEDULE.

AN AGREEMENT made the first day of June 1911 between THE LORD MAYOR ALDERMEN AND CITIZENS OF THE CITY OF LEEDS (herein-after called "the Corporation") of the one part and THE NORTH EASTERN RAILWAY COMPANY (herein-after called "the Company") of the other part.

WHEREAS by an agreement made the 12th day of August 1898 between the same parties it was provided (inter alia) that the Corporation should in connexion with their York Street Insanitary Area Scheme be empowered to widen certain streets and in connexion therewith to pay the cost of widening and altering the bridges carrying the Company's railway over the following streets namely Kirkgate Cross York Street Church Lane Duke Street and Brick Street upon the terms and conditions therein mentioned:

And whereas by another agreement made between the same parties A.D. 1911.
dated the 5th June 1905 it was provided that the said bridge carrying
the Company's railway over Duke Street should be further widened from
sixty feet to seventy-five feet subject to the conditions provided in
clauses 7 and 8 thereof:

And whereas the Corporation have under the terms of the above-
mentioned agreements given notice to the Company of their intention
to widen Kirkgate Church Lane and Duke Street but they do not desire
to widen Cross York Street or Brick Street:

And whereas the Company are promoting a Bill in the present
session of Parliament and by the said Bill are seeking powers to make
a widening and alteration of their Leeds and Selby Railway between
points about eighty yards west of the bridge carrying the said railway
over Briggate and twenty yards east of Marsh Lane East Signal Box
and the Corporation have agreed not to oppose the said Bill upon and
subject to the terms and conditions herein-after contained:

Now therefore it is hereby agreed as follows:—

If and when the Company execute the before-mentioned widening
and alteration of their railway and the works connected therewith the
following provisions shall apply:—

(1) Before stopping up Railway Street Pheasant Street Upper Cross
Street Richmond Road or Eastfield Street or the existing
footpath leading from Railway Street and Eastfield Street
to the footbridge over the Company's railway the Company
shall at their own cost and to the reasonable satisfaction of
the city engineer make—

(i) The New Road No. 2 and the widening of Crispin
Street shown on the plans deposited in connexion with
their said Bill herein-after referred to as "the said plans"
at least forty-two feet wide from Marsh Lane to Upper
Cross Street;

(ii) A new road at least twenty-seven feet in width
from Grantham Street to Eastfield Street shown as "New
Road No. 3" on the said plans; and

(iii) The diversion of the footpath leading to the said
footbridge as shown on the said plans:

(2) The Company shall acquire the land on the north and south
sides of their railway rendered necessary by the proposed
diversion of Cross York Street and the construction of the
New Road No. 1 shown on the said plans but the Corpora-
tion shall repay to the Company the purchase money and
all reasonable out-of-pocket costs and expenses incurred by

A.D. 1911.

the Company of and incidental to the acquisition of such land on the north side of the said railway as shall be necessary in order to provide a street thirty feet in width and the Corporation shall carry out at their own cost all necessary street works involved by the said diversion and by the said New Road No. 1. The southern main girder or girders of the widened bridge or bridges over Wharf Street and Kirkgate may be supported at any point between Wharf Street and Kirkgate only by steel columns or stanchions for a depth of not less than seventeen feet from the underside of such girder or girders:

- (3) The Company shall before appropriating the sites of any streets or portions thereof which they may be authorised to stop up under the powers of their said Bill give one month's notice to the Corporation in writing of their intention so to do and before the expiration of such notice the Corporation may take away any kerbs flags and paving stones as well as any pipes and underground cables belonging to them or within the sites of the said streets or portions thereof:
- (4) If by reason of the Company's widening and alteration of their railway and the works connected therewith any dwelling-houses are rendered unfit for habitation within the meaning of any general or local Acts or byelaws the Corporation shall have power to require the Company or any other owner who may have purchased from the Company to make the said houses fit for habitation or to demolish the same:
- (5) The depths of the foundations of the new abutments retaining and wing walls of the bridges which the Company seek power to construct or alter shall not be less than as follows:—

Brick Street ten feet Duke Street fifteen feet Eastside ten feet six inches Westside Church Lane nine feet Cross York Street nine feet Kirkgate six feet Crown Street nine feet six inches Call Lane ten feet six inches and Marsh Lane seven feet six inches:

Provided that these dimensions may be reduced where a rock foundation is found at a higher level And provided further that in the case of Marsh Lane Bridge only the engineers of the Corporation and the Company may if in their opinion the nature of the foundations or other circumstances justify it agree to a less depth:

- (6) All bridges reconstructed or widened shall be made and maintained by the Company so as to be reasonably watertight and drop dry at all times but this provision shall in no

way limit the proportions of the costs of constructing and maintaining the bridges to be borne by the Corporation as provided for in the herein-before recited agreements of the twelfth August one thousand eight hundred and ninety-eight and the fifth of July one thousand nine hundred and five respectively. All galvanized sheets shall be removed and if refixed or replaced they shall not project below the agreed level of the bottom of the girder work :

- (7) Where the widening of the railway abuts on to streets or intended streets parallel thereto the Company shall be entitled to overhang their parapet over and to construct the footings of their works under such streets so that the main walls of their works shall be the boundary of such streets such projections in neither case to exceed twelve inches. The plans and elevations of the Company's new viaduct and bridges shall be submitted to the city engineer for his information prior to the same being proceeded with :
- (8) The Company shall in carrying out the widening of the railway face with white glazed bricks the walls of the following bridges from four feet above pavement level to the springer of the arch or to the bedstone carrying the girders forming such bridges namely Call Lane Crown Street Brick Street Marsh Lane Kirkgate and Duke Street and they shall also similarly face with white glazed bricks the bridges carrying their existing railway over Call Lane Crown Street Brick Street and Marsh Lane and the Corporation shall be at the cost of similarly facing with white glazed bricks to the reasonable satisfaction of the Company's engineer the reconstructed portions of the bridges carrying the Company's existing railway over Kirkgate and Duke Street. The Company shall maintain the whole of the facings in good condition but the Corporation shall at their own expense keep all such facings clean. No bills or advertisements of any description shall be permitted on the parapets abutments screens or facings of any of the said bridges :
- (9) The Company shall make good to the reasonable satisfaction of the city engineer any portion of Saint Peter's Graveyard which has been allotted as an open space which may be interfered with by the Company in carrying out the widening of the railway :
- (10) In carrying out their works the Company may vary the headways of the various bridges carrying their existing railway and the widening of their railway herein-after

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referred to as "the said bridges" provided that such headways shall not be less than those herein-after mentioned namely:—

Street.	Clear Width of Street under Span of Bridge for Railway Widening.	Minimum clear Headway.	Form of Bridge.
	Feet.	Feet. Inches.	
Briggate - -	54	18 4½	Horizontal girder.
Call Lane - -	40	16 8	The like.
Crown Street - -	30	14 6	The like.
Wharf Street - -	30	21 1	The like.
Kirkgate - -	60	21 1	The like.
Church Lane - -	30	Same as the existing bridge.	Arch.
Duke Street - -	75	19 3	Horizontal girder.
Brick Street - -	30	Same as the existing bridge.	Arch.
Marsh Lane - -	60	16 8	Horizontal girder.

(11) The prescribed headways of the several girder bridges shall be clear throughout the width of the railway when widened and for the full width of the carriage road thereunder and the new parapets of all widened bridges and of any existing bridges which may be reconstructed shall be not less than five feet above the level of the rails and for such distance beyond the line of street on each side as will form an efficient screen to passengers along the street:

(12) The whole of the space under any new or reconstructed bridge over any public road shall be dedicated to the public use and the south corner of the abutment on the east side of Crown Street shall be splayed to the reasonable satisfaction of the city engineer:

(13) The Company shall after the completion of their works dedicate to the public use the following lands (namely):—

(i) So much of their land fronting on to The Calls between Call Lane and Crown Street as shall not be required for the widening of their railway;

(ii) Such area as may be agreed between the Corporation and the Company for the improvement of the junction of The Calls with the east side of Crown Street provided that the Company shall not be required to surrender this land until for their own purposes they pull down the buildings at present existing on the said land;

(iii) A strip of land containing twenty square yards or thereabouts adjoining the north side of their railway on the east side of Marsh Lane:

The Corporation shall pay for the lands referred to in sub-clauses (i) and (ii) at the rate of two pounds per yard but no payment shall be made in respect of the land in sub-clause (iii) which is to be given by the Company to the Corporation in exchange for the site of the abutment at the south end of Galway Street: A.D. 1911.

- (14) The Corporation shall subject to obtaining any necessary consent of the Local Government Board sell and the Company shall buy the additional strip of land including all mines and minerals the property of the Corporation thereunder required for the widening between Church Lane and Kirkgate containing one hundred and two square yards or thereabouts and a piece of land on the north side of The Calls and the west side of Crown Street containing eight and a half square yards or thereabouts and respectively shown by the colour pink on the plan hereto annexed at the price of two pounds per yard. The Company shall not require any abstract of title other than a copy of the conveyance to the Corporation of the said lands nor raise any objection or requisition with regard thereto or to the right or power of the Corporation to sell the same:
- (15) Where any building shall be cut through interfered with or damaged so as to be unsightly the portion thereof (if any) retained by the Company as a building shall be restored or altered so as to present a neat and substantial appearance:
- (16) The Company shall not break up any street or interfere with any sewer drain or watercourse or any gas or water mains pipes or underground apparatus of the Corporation until they shall have given to the Corporation fourteen clear days' notice in writing of their intention to commence the intended works accompanied by plans and sections and other necessary particulars showing the works proposed to be executed by the Company so far as they will affect the streets sewers drains watercourses gas and water mains and apparatus proposed to be interfered with:
- (17) The Company in carrying out the works authorised shall not unreasonably interfere in any way with the traffic on any tramways for the time being of the Corporation in Marsh Lane Kirkgate and Briggate respectively but shall make all such provision and do all such things as may be reasonably necessary to enable the same to be continued without interruption and if by reason of the construction of the works of the Company the Corporation shall suffer any loss or damage or be put to any expense in relation to the said tramways or it shall be necessary or expedient temporarily

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to remove or discontinue the use of any tramway or part of a tramway the amount of such loss damage or expense inclusive of the expense incurred by the Corporation in constructing a temporary tramway in the same or any adjoining road shall be paid by the Company:

- (18) The Company at all times shall allow attachments of such a nature and in such positions as may be reasonably approved by the principal engineer of the Company to be made to and shall afford such other facilities under or in respect of any of their said bridges as may be necessary or proper to enable the Corporation to work their tramways by electricity on the overhead system over or along any of the streets or roads over which the said bridges are or may be constructed and the Company shall erect any wires necessary for the purposes of their railway crossing any of such streets or roads by the said bridges in such positions as shall avoid interference with the electrical equipment and working of any tramways of the Corporation now or hereafter laid along any of such streets or roads:
- (19) Where the surface of any street has been interfered with or disturbed by the Company in constructing the works or exercising the powers sought by the said Bill the Company shall well and sufficiently and to the satisfaction of the Corporation restore the surface of the street so interfered with or disturbed:
- (20) In the construction of all street works including in this term the provision of all new streets or the stopping up diversion or widening of existing streets the sewerage draining leveling flagging and paving of such streets and the provision alteration relaying and making good of sewers and drains gas and water mains or pipes or electric cables or tramway equipment shall be done by the Corporation for and at the expense of the Company except where otherwise provided:
- (21) The footpath to be carried by a bridge over the widened railway authorised by the Act as mentioned in clause 1 of this agreement together with the approaches thereto shall be maintained and repaired by and at the expense of the Company:
- (22) The Corporation shall within three months from the receipt of a request in writing from the Company's engineer carry out the street works mentioned in clause 20 hereof:
- (23) The Corporation and the Company may agree upon any variation of the provisions of this agreement as to the nature of the works to be done hereunder or as to the mode of executing such works:

(24) The Company shall use their best endeavours to obtain the necessary statutory powers to divert the Beck running under their line at Duke Street: A.D. 1911.

(25) Any difference which may arise between the Corporation and the Company as to the true intent and meaning of any of the provisions of this agreement or as to the mode of giving effect thereto or as to anything to be done or not to be done thereunder shall be determined by a single arbitrator and in accordance with the provisions of the Arbitration Act 1889:

(26) Save where expressly varied by this agreement the provisions of the herein-before recited agreements of the twelfth August one thousand eight hundred and ninety-eight and the fifth June one thousand nine hundred and five shall remain in full force:

(27) This agreement is conditional upon the said Bill passing into law.

In witness whereof the Corporation and the Company have hereunto affixed their respective common seals the day and year first before written.

The common seal of the lord mayor aldermen and citizens of the city of Leeds was hereunto affixed }
in the presence of



CHARLES H. WILSON

Chairman of the Finance Committee.

WM. DERRY

City Treasurer.

The common seal of the North Eastern Railway }
Company was hereunto affixed in the presence of



G. ANTHONY

Secretary's Office

N. E. Railway

York.

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